

25STCP03811 25STCP03811

County: los-angeles

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Case Number: 25STCP03811 Hearing Date: August 20, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JACOB LISTER,

Petitioner(s),

vs.

CALIFORNIA

UNEMPLOYMENT INSURANCE APPEALS BOARD,

Respondent(s).

Case No.:

25STCP03811

Hearing Date:

August 20, 2026

[TENTATIVE]

ORDER RE: MOTION TO AUGMENT THE ADMINISTRATIVE RECORD

Petitioner Jacob Lister ("Petitioner") seeks to augment the administrative record to include an audio recording of a phone call from his initial intake call with the California Employment Development Department ("EDD").

The motion is denied.

I.

Background

1.

Factual Allegations

Petitioner's petition for writ of mandate alleges in pertinent part as follows:

Petitioner received 26 weeks of unemployment benefits ending January 6, 2024, in total \$6,084. (Pet. at 1.) EDD determined Petitioner had verified he was unemployed, but was in fact working part time. (Pet. at 1.) Therefore, EDD required Petitioner to pay back the full amount he received. (Pet. at 1.)

Petitioner had disclosed that he "was still working part time" on his Notice of Unemployment Insurance Claim Letter. (Pet. at 2; see Pet., Ex. 1.) An EDD employee guided Petitioner through the verification process, and Petitioner followed the employee's direction in verifying his unemployment. (Pet. at 1-2.)

Petitioner appealed the determination to respondent California Unemployment Insurance Appeals Board ("Respondent") two times, and further requested reconsideration by Respondent. (Pet. at 1.) Respondent found against Petitioner. (See Pet. at 1-2.)

2.

Procedural History

On October 1, 2025, Petitioner filed this writ action against Respondent. A proof of service filed October 23, 2025 shows Petitioner served the summons and petition on Respondent by personal service on October 16, 2025.

On June 1, 2026, Respondent filed its answer.

On June 16, 2026, Petitioner filed the instant motion to augment the administrative record. At the June 18, 2026 Trial Setting Conference, the Court directed Petitioner to properly serve the instant motion on Respondent. On August 7, 2026, Respondent filed its opposition. Any reply was due five court days before the hearing, in this case August 13, 2026. To date, Petitioner has not filed any reply.

II.

Discussion

Petitioner seeks to augment the administrative record to include an audio recording of his initial intake call with EDD to the administrative record, asserting he asked EDD to provide the recording both at the second administrative appeal and again when he filed this action.

“The general rule is that a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency.” (*Toyota of Visalia v. New Motor Vehicle Bd.* (1987) 188 Cal.App.3d 872, 881.) The court can only admit additional evidence where the party seeking its inclusion shows (1) the evidence could not have been presented to the agency in the first instance in the exercise of reasonable diligence or (2) was improperly excluded at the administrative stage. (CCP §1094.5(e); *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 578; *Eureka Citizens for Responsible Govt. v. City of Eureka* (2007) 147 Cal.App.4th 357, 366.) In the absence of a proper preliminary foundation showing that one of the exceptions noted in section 1094.5, subdivision (e) applies, it is error for the court to permit the record to be augmented. (*Toyota of Visalia, Inc. v. New Motor Vehicle Bd.* (1987) 188 Cal.App.3d 872, 881.)

Here, the Court cannot determine whether either exception applies because Petitioner has not provided the Court with the specific evidence he seeks to add. (See generally Mot.) The motion must be denied for that reason. The underlying problem, however, is straightforward: Petitioner does not have the recording he seeks to introduce.

A motion to augment is not the procedural mechanism for obtaining the recording. In certain circumstances, discovery may be permissible

in a mandamus action related to a motion to augment the record. (See *State v. Superior Court (Veta Co.)*(1974) 12 Cal.3d 237, 257; see also *Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93.). As explained in *Pomona Valley Hospital*, “[a]lthough there is no express provision allowing discovery in an administrative mandamus proceeding, section 1094.5, subdivision (e) has been interpreted to allow limited posthearing discovery provided the moving party shows that such discovery is reasonably calculated to lead to evidence admissible under Code of Civil procedure section 1094.5.” (Id. at p. 102.) Such discovery must be narrowly focused on evidence that, through no fault of the offeror, does not appear in the record. (Ibid.)

Discovery under section 1094.5 is thus far more limited than in ordinary civil cases. It cannot be used simply to search for unknown facts or speculative theories. Instead, section 1094.5(e) requires the moving party to specify the particular evidence they seek to add to the administrative record, show why that evidence is relevant, and demonstrate either that the evidence was wrongly excluded at the administrative hearing or that it could not have been presented there through reasonable diligence. If the moving party does not meet these criteria, the court abuses its discretion by permitting discovery after the hearing. (*Pomona Valley Hospital*, supra, 55 Cal.App.4th at p. 102.)

The Court will not construe the instant motion as a motion to permit discovery. [1] Petitioner may, however, file an appropriate motion seeking limited discovery to obtain the recording. This case may be suitable for such relief. It is undisputed that Petitioner requested the recording for the administrative hearing and EDD did not provide it. Neither party describes any justification EDD may have offered for doing so. On those facts—and without deciding the issue here—Petitioner may be able to show that the recording, if it exists, is the type of evidence the Court may consider under section 1094.5(e).

Nonetheless, section 1094.5(e) applies only to relevant evidence. Respondent argues augmentation is improper because “no recording is available.” (Opp. at 2-3; Munguia Decl., ¶ 3.)[2] Although styled as an availability argument, Respondent’s position effectively challenges relevance without addressing the nature of the recording that EDD does possess. Respondent states only that the recording located does not contain instructions regarding weekly benefit filings. (Opp. at 2-3; Munguia

Decl., ¶ 3.) In other words, Respondent's evidence plainly shows that it has a recording but provides little explanation about what that recording entails.

Petitioner's motion, while vague in some respects, is not as unclear as Respondent suggests. Petitioner identifies the sought-after evidence as "the phone call recording EDD has from my initial intake call with EDD" (Mot. at 1) and explains its relevance: he followed the instructions given during that call, which allegedly caused him to file incorrectly. (Mot. at 1.)

Respondent's showing does not describe the contents of the recording EDD did locate, nor does it clarify whether that recording corresponds to Petitioner's "initial intake call." (See generally Opp.; Munguia Decl.) Nevertheless, on the facts before the Court, the Court cannot determine whether the recording Respondent possesses is the intake call Petitioner requests, nor whether its contents are relevant.

III.

Conclusion

The motion is procedurally defective. The motion to augment the administrative record is DENIED without prejudice.

While it is unclear to the Court why Respondent neither provides the recording it did locate nor describes the content of that recording (or even state whether the recording contains Petitioner's "initial intake call with EDD"), the Court observes that Respondent may be able to resolve the matter without further motion practice (or at least simplify the issues) by providing its recording to Petitioner.

Date: August 20, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

If the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the mat

[1] Petitioner did not comply with the procedural requirements of California Rules of Court, rule 3.1112. He filed no notice, no memorandum of points and authorities, and no supporting evidence. Respondent does not raise these procedural defects, but they are significant. Given these deficiencies, the Court is not inclined to overlook the procedural shortcomings and, in addition, recast the motion (styled solely as a motion to augment) as a motion seeking discovery. Doing so would be unfair to Respondent, who was not put on notice that Petitioner sought discovery or that the Court might consider granting discovery under a different legal framework.

[2]

Respondents also contend that the recording would be cumulative and so denying the motion to augment would not prejudice Petitioner. Neither cumulativeness nor prejudice are part of the legal standard for a motion to augment.